

TENTATIVE RULINGS

DEPARTMENT N17

Judge Craig L. Griffin

Date: June 1, 2026

Time: 2:00 PM

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1	Quach v. Wright et al	The unopposed Motion to Substitute Ty Quach In Place Of Deceased Plaintiff, John Quach, filed on 4/24/26, is GRANTED. The Motion and supporting declarations filed therewith demonstrate that Plaintiff John Quach ("Plaintiff") died on 3/25/26, that Ty Quach is decedent's adult son, that the decedent's wife and other adult child agree that Ty Quach should substitute in for decedent here, and that Ty Quach has agreed to do so. The Motion also adequately complies with C.C.P. § 377.32. Ty Quach is therefore substituted into this action as Plaintiff, as successor in interest to decedent. Counsel for Plaintiff to give notice.
2	Trejo v. Trejo	Before the Court is a motion for summary judgment filed by cross-complainants Maria Guadalupe Trejo (Maria), Juan Manuel Trejo (Juan) and Luis Angel Vasquez (Luis)(collectively, Cross-Complainants) on their first amended cross-complaint (FACC) against cross-defendant Carmen Trejo (Cross-Defendant). For the reasons set forth below, the motion is GRANTED. Cross-Complainants' request for judicial notice (RJN) is GRANTED. A plaintiff seeking summary judgment must produce admissible evidence sufficient to demonstrate that it is entitled to judgment as

a matter of law. (Code of Civ. Proc. § 437c(c), (p)(1).) If the plaintiff meets that initial burden, the burden shifts to the defendant to show that a triable issue of one or more material facts exists. (*Id.*)

To prevail on a claim to cancel an instrument, a plaintiff must prove (1) the instrument is void or voidable; and (2) there is a reasonable apprehension of serious injury including pecuniary loss or the prejudicial alteration of one's position. (*Thompson v. Ioane* (2017) 11 Cal.App.5th 1180, 1193-1194; Civ. Code § 3412.)

Cross-Complainants have shown the quitclaim deed recorded on April 5, 2011 ("2011 Deed") transferring Maria's ownership in the property 1226 S. Flower Street, Santa Ana, CA 92707 and the quitclaim deed recorded on April 8, 2024 ("Corrective Deed") correcting spelling errors in the 2011 Deed are void because she did not have the present intent to transfer ownership at that time but intended to have the deeds to take effect upon her death. (*Meyer v. Wall* (1969) 270 Cal.App.2d 27 ["A deed delivered with the intent that it shall take effect only on the death of the grantor is an attempted testamentary disposition and therefore void"]; Cross-Complainants Statement of Undisputed Material Facts ("UMF") 3-14; RJN, Exs. C, D, E.)

To show reasonable apprehension of injury, Cross-Complainants argue the 2011 Deed and Corrective deed have increased property tax liability on the subject property. However, they produced no evidence showing property taxes have actually increased. Nevertheless, as pointed out by Cross-Complainants, Cross-Defendant has sued Maria, Juan and Luis based on the 2011 Deed and Corrective Deeds, showing legal prejudice and reasonable apprehension of serious injury if the deeds are left outstanding. (ROA 11.) Cross-Complainants met their initial burden on both elements of their claim for cancellation of instruments, and the burden shifted to Cross-Defendant to show a triable issue of fact.

To establish a triable issue of material fact, the party opposing a motion for summary judgment must produce substantial responsive evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166; *Uhrich v. State Farm Fire & Cas. Co.* (2003) 109 Cal.App.4th 598, 616.) Contrary to Cross-Defendant's contention, Maria's declaration is not the only evidence showing Maria's state of mind, as Cross-Complainants have also produced the declarations of Juan, Luis and Alejandro as well as the quitclaim deed recorded on April 25, 2024 which show Maria did not have the present intent to transfer ownership with the 2011 Deed and Corrective Deed. (UMF 8-14; RJN, Ex. E.) Thus, their credibility is not considered. (Code of Civ. Proc. § 437c(e).)

The only evidence produced by Cross-Defendant as to Maria's intent is Cross-Complainants Joint Discovery Declaration ("Joint Declaration") produced in this action. (Declaration of Brian P. Ballo, Ex. A.) However, the facts stated in the Joint Declaration corroborate Cross-Complainants' position that Maria did not have the present intent to transfer ownership with the 2011 Deed and